

**GOLD CREEK ESTATE OWNERS' ASSOCIATION v. VALLEY
SPRINGS GOLD CREEK, INC., et al.**

17CV42103

**PLAINTIFF'S MOTION TO FILE SECOND AMENDED
COMPLAINT**

This is a complex construction defect action involving allegations of negligent design and implementation of common areas within a condominium complex. Before the Court is plaintiff's opposed motion for leave to file a Second Amended Complaint.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Motions for leave are to follow the regular notice requirements contained in CCP §1005(b). Pursuant to California Rules of Court, Rule 3.1324, the moving party must:

- a) Specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and
- b) Include with the moving papers:
 - a copy of the proposed amended pleading; and
 - a declaration specifying:
 - (1) the effect of the amendment(s);
 - (2) why the amendment is necessary and proper;
 - (3) when the facts giving rise to the amended allegations were discovered;
and
 - (4) the reasons why the request was not made earlier.

Initially, there is no declaration accompanying the Court's copy of the motion. Although the points and authorities express that a declaration including the proposed new pleading and the 3.1324 factors accompanied the motion, no such declaration with attachments was filed with the Court, preventing further consideration of the motion at this time.

Based on the foregoing, Plaintiff's Motion to File Second Amended Complaint is Denied, without prejudice to refile and fully comply with all statutory and CRC requirements.

The Clerk to provide notice of this Ruling forthwith to the parties. No further formal Order is required beyond the Minute Order.